

First Steps to a Sales Contract – Enquiry and Offer



Fill in the following gap-exercises using the following words

(some of them might be needed twice)

binding buyer stocks (Vorräte) double terms of delivery or
payment
conclusion of a sales contract seller enquiry modified legal

1. Enquiry

The _____ asks the _____ to make an offer or to complete an already made offer. The _____ writes a **counteroffer** (*Gegenangebot*) if conditions should be _____.

The request may concern general information or special data, e.g. the _____ or further technical descriptions.

2. Offer

An offer is made by the _____ and should lead to the _____. Depending on who takes the initiative, we distinguish between an **unsolicited offer** (*unverlangtes Angebot*), where no _____ preceded and a **demande offer** (*verlangtes Angebot*), where an _____ has been received from a potential buyer and the offer refers to questions from this customer.

A **provisional offer** (*freibleibendes Angebot*), is not _____ to the seller. The following clauses may be stipulated (*vereinbart*)

- Prices are subject to change without notice
- Only while _____ last
- This offer is not binding

Offers that are not addressed to a particular person, such as unaddressed mailings (*Postwurfsendungen*), print ads, or goods in a shop window are not binding.

The binding period is either stated in the offer or the _____ binding period is applicable (*anwendbar*).

For an offer under people present there is no **consideration period** (*Überlegungsfrist*), whereas _____ delivery time and an appropriate consideration time is applied to offers under absent people.

B i o P o w e r L t d .

6 Donegal Road,
Galway GO 235

Professional Office Supplies



- Fill in the appropriate reference.

warwick.textiles Ltd
10, Main Street
Eastbourne EA 17 5GX

Schneider Import GmbH
Hauptstrasse 23
5020 Salzburg

March 20, 20xx

Offer

As wholesale suppliers of a large collection of rainproof clothing, we are proud to be able to make you this special offer.

We stock the best quality of rainproof clothing, samples of which we would be pleased to send free of charge on request so that you can see our products for yourselves.

We enclose a price- list and terms of delivery, and we will gladly assist you should you require any further details.

Yours faithfully

Andy Henson
Andy Henson



- Decide whether this is a demanded or unsolicited offer

Texta S.p.A.
Via di Pietra Papa, 00146 Roma



Williams & Co Ltd.
Newell Street
Birmingham B3 3EL



- What happened before this letter was written?

Professional Office Supplies
St. Patrick`Street
Cork CKO 123



Bio Power Ltd:
6 Donegal Road
Galway GAO 235

April 30, 20xx

Re: Quotation for planners/files/office paper

Dear Ms Howard,

Thank you for your enquiry dated April 28, 20xx. We have the pleasure in supplying you with the details of our terms and the following quotation:

- Sasco planner € 5.- each plus VAT
- Lever Arch files black A4 € 32.50 per 10 plus VAT
- PRO office paper A4 80g € 3.50 per 500 sheets plus VAT

Terms: Carriage paid, delivery immediate
10 days 2%, 30 days net

We trust this meets your approval and look forward to receiving your order in the near future.

Yours faithfully

P. O`Donnel
Sales Manager

- Answer the following questions with regards to the above offer.

	Yes	No
Professional Office Supplies will charge BIO POWER for the transport		
They will send the articles at once.		
VAT means "value added tax"		
All taxes are included in the prices quoted		
They offer a cash discount within 30 days		

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Calculate the following order from May 5th according to the above offer:

30 planners
200 files
50.000 sheets office paper